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SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF SACRAMENTO

BRENDAN N. NEWANFORBI, Petitioner, **v.** **JEFFREY MACOMBER, in his official capacity as Secretary of the California Department of Corrections and Rehabilitation,** Respondent.	Case No. 26WM000028 **REPLY TO OPPOSITION TO RESPONDENT'S DEMURRER TO THE PETITION FOR WRIT OF MANDATE** Date: May 29, 2026 Time: 11 a.m. Dept: 32 Judge: The Honorable James Arguelles

INTRODUCTION

Petitioner Brendan Newanforbi – a high-risk sex offender serving a mandatory 10-year parole term – challenges a California Department of Corrections and Rehabilitation ("CDCR") document, entitled "Discharge Review Report," which he maintains found him ineligible for parole discharge based on a CDCR policy that purportedly requires certain offenders to serve no fewer than 6.5 years on parole. Newanforbi seeks to vacate CDCR's 2025 parole-discharge "denial" and compel CDCR to conduct a new parole-discharge review based on an individualized assessment of all relevant factors.

Respondent demurred because Newanforbi (1) failed to exhaust his administrative remedies, (2) must seek equitable relief via habeas corpus, and (3) has no statutory right to early parole discharge given his commitment offense. In his opposition, Newanforbi fails to overcome the demurrer's grounds for the petition's dismissal. Further, his opposition improperly raises a new claim for relief concerning his sex-offender treatment program, which is itself unexhausted and lacks mandamus jurisdiction. Therefore, this Court should sustain respondent's demurrer to the petition without leave to amend.

ARGUMENT

I. NEWANFORBI MUST EXHAUST HIS ADMINISTRATIVE REMEDIES BEFORE SEEKING RELIEF.

This Court should sustain respondent's demurrer because Newanforbi has not exhausted his administrative remedies concerning his various complaints regarding CDCR's activities, including the December 1, 2025 "Discharge Review Report," and the sex offender treatment program. Indeed, exhaustion will provide CDCR the ability to review relevant evidence, interview witnesses, such as Newanforbi and agency decisionmakers, and identify the ultimate issues, like whether Newanforbi is eligible for parole discharge and, if so, whether Amended Policy 19-03 was appropriately applied. (Cal. Code Regs., tit. 15, § 3483, subd. (e) [identifying CDCR protocols for issuing a written decision addressing an administrative grievance].)

In his opposition, Newanforbi asserts that he does not need to file an administrative grievance challenging the discharge-ineligibility decision because CDCR cannot vacate its own decision, or overturn its own policies. (Opp'n, pp. 5-9.) Contrary to Newanforbi's argument, CDCR's administrative appeals process can fix errors in an administrative policy, which could include reconsideration of a parolee's discharge eligibility assessment. (Cal. Code Regs., tit. 15, § 3723 [providing that parolees can obtain review and corrections of discharge review reports via the administrative appeal process]; *id.* at § 3481, subd. (a) [parolees can obtain review of any disputed policy, decision, or action by CDCR]; *id.* at § 3483, subd. (j) [providing that CDCR shall implement the "corresponding remedy" should it grant an individual's claim within 30 calendar

days of the administrative decision].) Newanforbi has not administratively challenged CDCR's actions and he cannot pretend to know how CDCR would address a meritorious grievance.

Similarly, Newanforbi asserts that he need not exhaust his claim regarding his sex offender treatment program. (Opp'n, pp. 5-9.) Citing a three-year-old case adjudicated in a different county, Newanforbi alleges that CDCR has a current policy of making it impossible for sex offenders to complete sex offender treatment before their parole terms end, and thus, exhaustion should be excused because CDCR cannot change this policy via the administrative grievance process. (Opp'n., p. 6.)[1]

Newanforbi is mistaken. Last year, CDCR adopted new regulations enabling sex offenders who follow certain criteria to complete treatment in one year. (Cal. Code Regs., tit. 15, § 3574.) And if parole agents decide to retain a parolee in a sex offender treatment program, certain protocols must be followed. (Cal. Code Regs., tit. 15, § 3574, subds. (d), (f).) Here, CDCR's appeals process can assess whether Newanforbi has received the proper procedural safeguards and whether he was appropriately retained in the program.

In sum, the demurrer should be sustained because Newanforbi has not exhausted his administrative remedies.

II. NEWANFORBI HAS A PLAIN, SPEEDY, AND ADEQUATE ALTERNATIVE LEGAL REMEDY IN HABEAS.

The petition is also not proper in mandamus because Newanforbi has an adequate legal remedy available – he can file a habeas petition. Newanforbi alleges that he can seek relief via mandamus because habeas courts cannot grant the relief he seeks, and because the availability of habeas relief does not foreclose seeking mandamus relief. (Opp'n., pp. 10-12.) Each of these claims lack merit.

[1] Similarly, Newanforbi's relies on a Los Angeles County Superior Court 2023 order (which he does not provide) regarding a petition for writ of mandate in *Alliance for Constitutional Sex Offense Laws, Inc. v. Macomber*, to support his claim he should not be required to exhaust. (Opp'n, pp. 2, 5, 9-11.) Such a reliance is misplaced as the *Alliance* case also pre-dated CDCR's 2025 amendment of its regulations, outlined in section 3574 of Title 15 of the California Code of Regulations, designed to regulate the length of time a sex offender can be required to participate in sex offender treatment.

First, a habeas court has authority to grant the relief Newanforbi seeks. Newanforbi requests that CDCR reverse its decision finding him ineligible for early parole discharge, document its decision to retain him in a sex offender program, and then assess whether Newanforbi is suitable for early parole discharge. (Petn., p. 8.) Alternatively, Newanforbi requests declaratory relief stating that individuals like him are not subject to Amended Policy 19-03 and are entitled to the protections outlined in section 3754 of CDCR's regulations. (*Id.*) Newanforbi does not challenge the ability of habeas courts to issue relief specific to him, but claims that habeas courts cannot "naturally provide prospective equitable relief against systemic policies." (Opp'n, p. 11.) Newanforbi is incorrect. A habeas court has broad authority in fashioning relief as it may dispose of a habeas petition "as the justice of the case may require." (*In re Crow* (1971) 4 Cal.3d 613, 619.) That broad authority includes the authority to declare the petitioner's rights and the rights of other similarly situated and to provide injunctive relief. (*In re Walters* (1975) 15 Cal.3d 738, 744; *In re Faucette* (1967) 253 Cal.App.2d 338, 343 [habeas corpus provides the proper basis for obtaining "declaratory and injunctive relief"].) Habeas may also be used to grant relief to a class. (*In re Arias* (1986) 42 Cal.3d 667, 700.) Thus, the habeas court can order relief specific to Newanforbi, and it can provide declaratory and injunctive relief to those who are similarly situated.

Second, the availability of habeas relief forecloses mandamus relief in this case. (Opp'n, p. 12.) A writ of mandate may only issue when the petitioner has established that there is no other plain, speedy, and adequate remedy at law available. (Code Civ. Proc., §§ 1085, 1086.) Thus, where a plain, speedy and adequate remedy is available via habeas corpus, mandamus relief is not available. (*Gilliam v. L.A. Municipal Court* (1979) 97 Cal.App.3d 704, 709.) As outlined above, a habeas court can provide all the relief that Newanforbi has requested should the court find Newanforbi's claims meritorious. Habeas also provides a plain and speedy remedy because habeas courts are bound by court rules ensuring a speedy adjudication of habeas matters. (Cal. Rules of Ct., rule 4.551(a)(3)(B) [court must either deny the writ, request an informal response, or issue an order to show cause within 60 days of the filing of the petition]; Pen. Code, § 1475 [providing that courts may require a respondent to submit a return to an order to show cause as

little as 24 hours after being served with the petition].) Because Newanforbi can (a) readily file a habeas petition, (b) receive speedy adjudication of the habeas petition, and (c) receive the relief he requested via habeas, the demurrer should be sustained.

III. NEWANFORBI FAILS TO ESTABLISH A MINISTERIAL RIGHT TO PAROLE-DISCHARGE REVIEW.

The demurrer should also be sustained because CDCR does not have a statutory or regulatory duty to review whether Newanforbi is suitable for early parole discharge. In 2018, Newanforbi was convicted of committing sexual penetration by force (a violation of Penal Code section 289, subdivision (a)(1)(A)), an offense that requires a mandatory 10-year parole period. (Pen. Code, §§ 3000, subd. (b)(2)(B), 667.5, subds. (c)(11).) As outlined in respondent's demurrer and below, Newanforbi is not eligible for early parole discharge consideration under Penal Code section 3001.

Penal Code section 3001, subdivision (a) provides that CDCR has a duty to conduct parole-discharge for certain parolees, depending on the date of the individual's commitment offenses and the Penal Code section the individual was convicted of violating. For offenses committed prior to September 30, 2012, the Penal Code provides CDCR with the authority to conduct parole-discharge reviews for parolees serving 10-year parole terms based on Penal Code section 3000, subdivision (b)(2)(B). (Pen. Code, § 3001, subd. (a)(1)-(3).) Effective September 30, 2012, the Penal Code was modified to eliminate parole-discharge reviews for offenders serving a 10-year parole term based on sexually violent felony convictions. (Pen. Code, § 3001, (a)(4) [providing that the parole discharge review dates provided in subdivision (a), paragraphs (1) through (3) only apply to "person whose commitment offense occurred prior to the effective date of the act adding this paragraph"].) For commitment offenses occurring on or after September 30, 2012, only paragraphs (b) and (c) of Penal Code section 3001 apply. Specifically, Penal Code section 3001 provides that individuals referred to in Penal Code section 3000, subdivision (b)(1), are eligible for early parole discharge after three years of continuous parole supervision. (*Id.* at sub. (b).) Further, individuals who are referred to in Penal Code section 3000, subdivision (b)(3) are eligible for early parole discharge after 6.5 years of continuous parole supervision. (*Id.* at subd.

(c).) Thus, for individuals who are subject to a 10-year parole term under Penal Code section 3000, subdivision (b)(2) and who committed their offense after September 30, 2012, there is statutory provision providing for early parole discharge review.

Here, because Newanforbi committed his crimes in 2017, he is not entitled to discharge review under paragraph (a) of Penal Code section 3001. And because his 10-year parole term was imposed under paragraph (b)(2)(B) of Penal Code section 3000, he does not have a statutory right to early parole discharge under Penal Code section 3001.

Newanforbi alleges that Penal Code section 3008, subdivision (d)(2) and California Code of Regulations, title 15, section 3574 requires CDCR to conduct parole-discharge reviews for parolees such as him. (Opp'n, pp. 12-16.) But this statute and this regulation govern the procedures CDCR must follow to retain a parolee in sex offender treatment. (Pen. Code, § 3008, subd. (d)(2); Cal. Code Regs., tit. 15, § 3574, subds. (d), (f) [providing that the determination to retain a participant in the sex offender management program is documented on a CDCR Form 3043] .) These sections of the Penal Code and CDCR's governing regulations do not govern whether CDCR must conduct early parole discharge reviews for specific offenders such as Newanforbi. (*Ibid.*)

In summary, Penal Code section 3001 does not provide for early discharge review for offenders, like Newanforbi, who committed their crimes after September 2012 and are subject to 10-year parole terms under Penal Code section 3000, subdivision (b)(2)(B). Thus, CDCR has no statutory duty to review Newanforbi for early parole discharge.

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CONCLUSION

In sum, this Court should sustain respondent's demurrer because the claims raised in Newanforbi's petition and his opposition have not been exhausted and can be raised in a habeas petition. Further, Newanforbi has failed to establish CDCR owes him a ministerial duty to consider him for early parole discharge.

Dated: May 15, 2026

Respectfully submitted,

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DECLARATION OF SERVICE BY U.S. MAIL

Case Name: ***Brendan N. Newanforbi v. Jeffrey MaComber***

No.: **26WM000028**

I declare:

I am employed in the Office of the Attorney General, which is the office of a member of the California State Bar, at which member's direction this service is made. I am 18 years of age or older and not a party to this matter. I am familiar with the business practice at the Office of the Attorney General for collection and processing of correspondence for mailing with the United States Postal Service. In accordance with that practice, correspondence placed in the internal mail collection system at the Office of the Attorney General is deposited with the United States Postal Service with postage thereon fully prepaid that same day in the ordinary course of business.

On May 18, 2026, I served the attached

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by placing a true copy thereof enclosed in a sealed envelope in the internal mail collection system at the Office of the Attorney General at 455 Golden Gate Avenue, Suite 11000, San Francisco, CA 94102-7004, addressed as follows:

Brendan Newanforbi
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I declare under penalty of perjury under the laws of the State of California and the United States of America the foregoing is true and correct and that this declaration was executed on May 18, 2026, at San Francisco, California.

N. Newlin	/s/ N. Newlin
Declarant	Signature

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